



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

December 17, 2021

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Shaunte Johnson**
Tax Registry No. 938727
Military & Extended Leave Desk
Disciplinary Case No. 2020-22731

The above named member of the service appeared before Assistant Deputy Commissioner Paul M. Gamble on August 12, 2021 and was charged with the following:

DISCIPLINARY CASE NO. 2020-22731

2. Said Police Officer Shaunte Johnson, while assigned to the Patrol Borough Manhattan North Specialized Units, on or about September 29, 2020, while on sick report, wrongfully failed to safeguard her service firearm, a fully-loaded Smith & Wesson 9mm pistol, in that said Police Officer left said firearm unattended inside a backpack in a residence occupied by [REDACTED] (As amended)

P.G. 204-08, Page 1, Paragraph 7

**FIREARMS – GENERAL
REGULATIONS
UNIFORMS AND EQUIPMENT**

3. Said Police Officer Shaunte Johnson, while assigned to the Patrol Borough Manhattan North Specialized Units, on or about September 29, 2020, while on sick report, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer wrongfully acted in a manner likely to be injurious to the physical, mental, or moral welfare of a child less than seventeen (17) years old, by permitting her [REDACTED] to stay in a residence that contained, unsafeguarded, a fully-loaded 9mm firearm.

P.G. 203-10, Page 1, Paragraph 5

**PUBLIC CONTACT –
PROHIBITED CONDUCT
ENDANGERING THE
WELFARE OF A CHILD**

N.Y.S. Penal Law 260.10 (1)

7. Said Police Officer Shaunte Johnson, while assigned to the Patrol Borough Manhattan North Evidence Collection Team, in or about September 2020, having changed her residence, wrongfully failed to notify her Commanding Officer immediately of such change.

P.G. 203-18, Page 1, Note

**RESIDENCE REQUIREMENTS
GENERAL REGULATIONS**

In a Memorandum dated September 24, 2021, Assistant Deputy Commissioner Paul M. Gamble found Police Officer Johnson guilty, having pled guilty, of Specification Nos. 2 and 7, and not guilty of Specification No. 3, in Disciplinary Case No. 2020-22731. Having read the Memorandum and analyzed the facts of this matter, I approve of the findings, but disapprove the penalty.

I have considered the totality of the circumstances and issues concerning the misconduct for which Police Officer Johnson has been found guilty, and deem that, in light of Police Officer Johnson's prior, substantial, disciplinary history, separation from the Department is warranted. However, instead of an outright dismissal from the Department, I will permit an alternative manner of separation from the Department for Police Officer Johnson at this time.

It is therefore directed that an *immediate* post-trial settlement agreement be implemented with Police Officer Johnson in which she shall forfeit thirty (30) suspension days without pay (already served), forfeit thirty (30) suspension days (to be served), be placed on one (1) year dismissal probation, forfeit all time and leave balances, and immediately file for vested-interest retirement.

Such vested-interest retirement shall also include Police Officer Johnson's written agreement to not initiate administrative applications or judicial proceedings against the New York City Police Department to seek reinstatement or return to the Department. If Police Officer Johnson does not agree to the terms of this vested-interest retirement agreement as noted, this Office is to be notified without delay. This agreement is to be implemented **IMMEDIATELY**.



Dermot Shea
Police Commissioner



POLICE DEPARTMENT

September 24, 2021

-----X
In the Matter of the Charges and Specifications :

- against - :

Police Officer Shaunte Johnson :

Tax Registry No. 938727 :

Military & Extended Leave Desk :

Case No.

2020-22731

-----X
At:

Police Headquarters
One Police Plaza
New York, NY 10038

Before:

Honorable Paul M. Gamble
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department:

David Green, Esq.
Department Advocate's Office
One Police Plaza
New York, NY 10038

For the Respondent:

Craig Hayes, Esq.
Worth, Longworth & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE DERMOT F. SHEA
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

2. Said Police Officer Shaunte Johnson, while assigned to the Patrol Borough Manhattan North Specialized Units, on or about September 29, 2020, while on sick report, wrongfully failed to safeguard her service firearm, a fully-loaded Smith & Wesson 9mm pistol, in that said Police Officer left said firearm unattended inside a backpack in a residence occupied by [REDACTED]

[REDACTED] (As amended)

P.G. 204-08, Page 1, Paragraph 7

FIREARMS –
GENERAL REGULATIONS
UNIFORMS AND EQUIPMENT

3. Said Police Officer Shaunte Johnson, while assigned to the Patrol Borough Manhattan North Specialized Units, on or about September 29, 2020, while on sick report, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Police Officer wrongfully acted in a manner likely to be injurious to the physical, mental, or moral welfare of a child less than seventeen (17) years old, by permitting [REDACTED] to stay in a residence that contained, unsafeguarded, a fully loaded 9mm firearm. (As amended)

P.G. 203-10, Page 1, Paragraph 5

PUBLIC CONTACT –
PROHIBITED CONDUCT
GENERAL REGULATIONS

N.Y.S. Penal Law 260.10(1)

ENDANGERING THE WELFARE
OF A CHILD

7. Said Police Officer Shaunte Johnson, while assigned to the Patrol Borough Manhattan North Evidence Collection Team, in or about September 2020, having changed her residence, wrongfully failed to notify her Commanding Officer immediately of such change.

P.G. 203-18, Page 1, Note

RESIDENCE REQUIREMENTS
GENERAL REGULATIONS

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on August 12, 2021. Respondent, through her counsel, pleaded Guilty to Specifications 2 and 7, and entered a plea of Not Guilty to Specification 3. The Department called no witnesses; Respondent testified on her own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having reviewed all of the evidence in this matter, I find

Respondent Not Guilty of Specification 3, and Guilty of Specifications 2 and 7 in accordance with her plea. I recommend that she forfeit 60 penalty days (30 pretrial suspension days and 30 vacation days) and be placed on one-year dismissal probation.

ANALYSIS

The principal facts of the case are not in dispute. At issue is solely whether Respondent's actions legally constitute endangering the welfare of a child, in violation of Penal Law Section 260.10(1) (Specification 3).

Respondent testified that she [REDACTED] She moved into the family home of [REDACTED] in August of 2020. While she was in the process of bringing her belongings, Respondent brought her firearm with her to the new house. She did not bring her safe, however, which she had purchased to store her firearm and ammunition. Respondent kept her firearm in a backpack; the gun was under her personal laptop, which was also in the backpack. She testified that she kept the backpack in [REDACTED] bedroom, on the floor next to his bed. There was another computer in the home office of [REDACTED], which [REDACTED] could have potentially used for school. Respondent acknowledged that she should have brought the safe to [REDACTED], but offered that she could not do so at the time because she had torn a ligament in her ankle. She also conceded that [REDACTED] did not keep the bedroom door locked (T. 13-16, 24-25, 28, 30, 37, 39-41)

Respondent said that prior to the incident in question, she had spoken to [REDACTED] about her service firearm, when [REDACTED] was nine years old. She warned [REDACTED] that the gun was not a toy and that, if she were to see it anywhere in the house, she should never touch it. They never had another conversation about guns after that and [REDACTED] never expressed further interest in the weapon. Respondent conceded that she never advised [REDACTED] against going into her backpack, after she began storing her gun there. (Tr. 16-18, 32, 35)

Respondent has pleaded Guilty to Specification 2, failure to safeguard her fully loaded service firearm in the residence occupied by [REDACTED], and Specification 7, failure to notify her Commanding Officer of a residential address change. Accordingly, I find her Guilty of those Specifications. Specifications 1, 4, 5 and 6 were dismissed. What remains is whether Respondent is Guilty of Specification 3, endangering a child by allowing [REDACTED] to reside in a home with an unsafeguarded, loaded firearm. I find that the Advocate has not proven by a preponderance of the relevant, credible evidence that Respondent's conduct in this matter meets the legal definition of endangering the welfare of a child under the Penal Law.

In New York, a defendant is guilty of endangering the welfare of a child when "he or she knowingly acts in a manner *likely* to be injurious to the physical, mental or moral welfare of a child less than seventeen years old" (emphasis added). The Court of Appeals decided two child-endangerment cases involving firearms in *People v. Hitchcock*, 98 N.Y.2d 586 (2002), which demonstrated how the question of likely harm is outcome-determinative.

The first defendant, who kept 23 firearms openly accessible in his home and showed a child how to load and operate a gun, was guilty of endangering the child. The other defendant, who took steps to conceal his weapon and was unaware the child saw where he hid it, was not guilty. In the latter scenario, the Court of Appeals determined the evidence was insufficient to demonstrate awareness of likely harm to a child, particularly because the defendant did not know that anyone in his family knew the gun was in the house.

In the instant case, Respondent's conduct is more analogous to the second scenario in *Hitchcock*. Although Respondent did not properly secure her firearm, she did not have reason to believe that [REDACTED] knew that it was stored in her backpack, nor did she instruct [REDACTED] to retrieve anything (such as her laptop) from the backpack. Respondent also credibly testified that she had

previously had a talk with ■■■ about the danger of firearms, during which she told ■■■ never to touch her gun. These factors demonstrate the remoteness of danger to ■■■

The Advocate emphasized the potential attraction ■■■ might have to her mother's laptop and, thus, to the backpack. However, ■■■ had another computer in the home that she could use for her remote education, which makes it less likely that she would accidentally stumble upon the gun while searching for a computer. The evidence provided by the Advocate only established that harm to ■■■ was possible; the Penal Law and Department precedent require proof that harm is likely. Accordingly, I find Respondent Not Guilty of Specification 3.

PENALTY

In order to determine an appropriate penalty, the Tribunal, guided by the Department Disciplinary System Penalty Guidelines ("Disciplinary Guidelines"), considered all relevant facts and circumstances, including any aggravating and mitigating factors established in the record. Respondent's employment record was also examined (*see* 38 RCNY § 15-07). Information from her personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 11, 2005, has pled guilty to failing to safeguard her firearm in a residence in which her minor child was present and failing to notify the Department of a change of address. The Department Advocate has recommended that Respondent be terminated based on the three specifications at issue. I note again that I have found her Not Guilty of the specification charging her with endangering the welfare of a child. I further note that Respondent was suspended without pay for 30 days immediately following this incident and has remained suspended to date.

While the facts in this case did not rise to the level of endangering the welfare of a child, it cannot be ignored that this is not a simple failure to safeguard a firearm case. Indeed,

Respondent pled Guilty to leaving her service firearm “unattended inside a backpack in a residence occupied by [REDACTED].” To analyze Respondent’s actions without acknowledging that Respondent’s carelessness involved at least some potential risk to her child would defy logic, common sense and basic firearm safety principles. As such, the presumptive penalty for “firearm misconduct involving risk to a child” is 30 days; the aggravated penalty is termination (Guidelines, p. 39). With respect to Specification 7, the presumptive penalty for failure to notify her commanding officer of an address change is a Schedule “A” command discipline, carrying a penalty of up to five days.

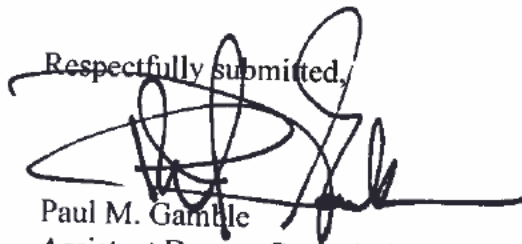
I find Respondent’s prior disciplinary record to be a significant aggravating factor. Respondent was found guilty of criminal association in 2011 and forfeited 15 vacation days, but more troubling is her 2012 plea involving an off-duty physical altercation in the presence of her child for which she forfeited 30 suspension days. In short, she has shown a history of extremely poor judgment in her personal life. The seriousness of the 2012 case; the number (2) of prior cases; and the similarity between the 2012 child endangerment in the context of a domestic incident and the instant case (also involving carelessness with a weapon in the home with a child) are all aggravating factors.

Under the Disciplinary Guidelines, if the imposition of a penalty for prior misconduct occurred within the past ten years and resulted in more than 15 penalty days, a second incident involving misconduct “carrying an equal or greater presumptive penalty than the prior act of misconduct, shall result in a penalty increase to 20-30 days and Dismissal Probation” (Guidelines, p. 12).

In accordance with the Guidelines and having carefully considered all relevant facts and circumstances with respect to both Respondent’s history and the present matter, I recommend that Respondent forfeit 30 vacation days in addition to the 30 days served on suspension without

pay, for a total of 60 penalty days. It is also clear that a period of monitoring is not only warranted, but necessary. I therefore recommend that Respondent be DISMISSED from the New York City Police Department, but that her dismissal be held in abeyance for a period of one (1) year pursuant to Section 14-115 (d) of the Administrative Code, during which time she remains on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings.

Respectfully submitted,


Paul M. Gamble
Assistant Deputy Commissioner Trials





POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER SHAUNTE JOHNSON
TAX REGISTRY NO. 938727
DISCIPLINARY CASE NO. 2020-22731

Respondent was appointed to the Department on July 11, 2005. On her last three annual performance evaluations, Respondent was rated as "Exceeds Expectations" for 2017, 2018 and 2019. She has been awarded one medal for Excellent Police Duty.

In 2011, Respondent forfeited 15 vacation days for criminal association. In 2012, she forfeited 30 suspension days without pay and agreed to cooperate with counseling after pleading guilty to (i) being involved in a physical altercation with her husband in which he was struck in the head, (ii) striking her husband with intent to harass, annoy or alarm, (iii) acting in a manner likely to be injurious to her minor child's welfare by virtue of the child being present during the altercation and (iv) failing to request the response of a patrol supervisor.

Respondent was placed on Level 1 Discipline Monitoring from February 2, 2011 to December 7, 2011, which was then upgraded to Level 2 Discipline Monitoring and completed on June 7, 2013. Respondent has been suspended since September 29, 2020 in connection with the instant matter.

For your consideration.

Paul M. Gamble
Assistant Deputy Commissioner Trials